

against the omitted defendants along with the existing judgment-debtors. It would thus appear that the omission of the omitted defendants was clerical, and the court's intention in approving the application for default judgment was to enter judgment as to all of the omitted defendants and existing judgment-debtors. Accordingly, the court's own motion is granted. The proposed amended judgment filed April 15, 2026, shall be entered as sought.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/22/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Quality Furniture N Home Design, Inc. v. Vie-Del Company et al.***

Superior Court Case No. 24CECG02953

Hearing Date: June 23, 2026 (Dept. 503)

Motion: By Plaintiff for Leave to File a Second Amended Complaint

Tentative Ruling:

To grant plaintiff's motion for leave to file a second amended complaint. (Code Civ. Proc. § 473.) Plaintiff shall file their second amended complaint within 10 days of the date of service of this order. All new allegations shall be in **boldface**.

Explanation:

" 'Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.' [Citation.] 'In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.' [Citation.]" (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

"While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.' If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

On a noticed motion for leave to amend a pleading, requirements set forth by California Rules of Court, rule 3.1324 must be followed. The motion must include a copy of the proposed amendment or an amended pleading. (Cal. Rules of Court, rule 3.1324(a)(1), (c).) It must also include a declaration stating the following:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;

- (3) When the facts giving rise to the amended allegations were discovered;
and
- (4) The reasons why the request for amendment was not made earlier.

(Cal. Rules of Court, rule 3.1324(b).)

Here, plaintiff Quality Furniture N Home Design, Inc. ("Plaintiff") seeks leave to file the second amended complaint to assert a claim for fraud and rescission for agreements with defendant Vie-Del Company ("Defendant") for the same property as stated in the previous operative complaint. The proposed second amended complaint is attached to the declaration in support of the motion. Defendant submitted an opposition to the motion arguing that the amendment is prejudicial to Defendant, that the motion does not meet the requirements of Rules of Court, rule 3.1324(b), and that the cause of action would not be filed within the statute of limitations. The court has considered these arguments and determined that the prejudice that may result from the amendment is not such that should deprive a plaintiff their right to amend their pleading. Plaintiff's motion complies with Rules of Court, rule 3.1324(b), as the declaration by Plaintiff's counsel states that the failure to include the cause of action at the time the First Amended Complaint was filed was due to counsel's failure and mistake. The other pleading challenges raised by Defendant would be premature.

Therefore, the court grants the motion for leave to file the second amended complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/22/2026.
(Judge's initials) (Date)